

Court No. - 3

Case :- WRIT - C No. - 22000 of 2022

Petitioner :- Sunil Jaiswal

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Anand Prakash Paul, Brij Bhushan Paul

Counsel for Respondent :- CSC, Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondent and Shri Narendra Kumar Tiwari, learned counsel for the respondent no. 3 to 5.

2. This writ petition has been filed praying for the following reliefs :

"(i) Issue a writ of certiorari after calling for record of the case, quash the impugned Notice dated 31.8.2021 (Annexure-1) and Recovery Citation dated 5.4.2022 (Annexure-3), issued by Respondent Nos. 5 and 2 respectively.

(ii) Issue a writ of mandamus commanding Officials Respondents from taking any coercive action against Petitioner for alleged recovery of Rs. 53,697/-."

3. Learned counsel for the respondent no. 3 to 5/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.5 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.5 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 8.8.2022

A. V. Singh